

IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

FILED FOR RECORD

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CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MANOR MHC
HOLDINGS, LLC,

Plaintiff,

CASE NO.: 2021-CA-004553

DIVISION: D

v.

LORI SKIPPER,

Defendant.

**MAGISTRATE'S REPORT AND RECOMMENDATION ON PLAINTIFF'S AMENDED
MOTION TO DISMISS DEFENDANT'S COUNTERCLAIM, AND DEFENDANT'S
MOTION FOR CONTINUANCE OF HEARING**

THIS CAUSE came on for hearing before the undersigned General Magistrate after due notice on February 14, 2022, on Plaintiff's Amended Motion to Dismiss Counterclaim, filed on January 7, 2022, and the Defendant's Motion for Continuance of Hearing, filed on February 11, 2022. After carefully considering the above listed Motions, the Court file, the applicable law, and being otherwise duly advised in the premises, the Magistrate submits the following Report and Recommendation:

1. This matter was duly referred to the Magistrate for hearing by Order of Referral entered by the Court. No objections were filed or made to the General Magistrate hearing this cause pursuant to Fla. R. Civ. P. 1.490.
2. This is a civil action in which the Plaintiff seeks monetary damages for breach of fiduciary duty, declaratory and injunctive relief, and damages for breach of contract.
3. On January 7, 2022, the Plaintiff filed an Amended Motion to Dismiss Defendant's Counterclaim. Pursuant to a Notice of Hearing filed on January 14, 2022, the Plaintiff's Motion was scheduled for hearing before the undersigned on February 14, 2022.
4. On February 11, 2022, the last business day before the hearing on the Plaintiff's Motion was scheduled to take place, the Defendant filed a Motion for Continuance of Hearing. In the Motion, the Defendant essentially claims that the Plaintiff unilaterally scheduled the hearing on February 14, 2022, without consulting with the Defendant or asking for her availability. In addition, the Defendant claims that she notified the Plaintiff's attorney that she would be recovering for surgery and unavailable for any actions "during this period due to medications being administered to suppress pain."

5. The Defendant did not file a Notice of Unavailability in the Court file identifying the dates she would be unavailable to participate in Court proceedings as a result of undergoing any medical procedures. In addition, although the Defendant appeared at the hearing on February 14, 2022, via Zoom and indicated that she had recently taken pain medication, the Defendant indicated that she was agreeable to the Court proceeding with the hearing on the Plaintiff's Motion, if the Court also allowed her a period of time to respond to the Plaintiff's Motion in writing. The Court agreed, and the Defendant was informed that she would have a period of fifteen (15) days following the hearing to file her written response to the Plaintiff's Motion. Accordingly, the Defendant's Motion for Continuance of Hearing is **DENIED**.
6. On March 1, 2022, the Defendant filed her Answer to Plaintiff's Motion to Dismiss.
7. In ruling on a motion to dismiss pursuant to Fla. R. Civ. P. 1.140, the "court's gaze is limited to the four corners of the complaint."¹ The issue then before the Court is whether the complaint states a valid cause of action.² To determine the sufficiency of a plaintiff's complaint, the Court must assign truth to the facts alleged and determine whether the facts support an actionable cause of action under the applicable principals of law, and all reasonable inferences must be construed in favor of the plaintiff.³ To survive a motion to dismiss, a complaint must allege a prima facie case.⁴ Exhibits attached to a complaint are a part of the complaint for purposes of a motion to dismiss.⁵ If the facts reveal a plaintiff's exhibits are inconsistent with the allegations in other portions of the complaint, then those contradicting allegations operate to cancel each other out, rendering the pleading insufficient.⁶ Moreover, the plain language of an exhibit to a complaint is controlling over the allegations in the complaint, and may be the basis of a motion to dismiss when the attached document negates the pleader's cause of action.⁷ A party does not state a cause of action by merely reciting legal conclusions or tracking statutory language, but must include factual allegations.⁸
12. With respect to Count I of the Defendant's Counterclaim for Discriminatory Actions Based on Gender, the Court agrees with the Plaintiff. First, the Plaintiff is correct that the Defendant has failed to satisfy a condition precedent to asserting a claim for discrimination/violation of civil rights under Chapter 760 of the Florida Statutes. Fla. Stat. § 760.11 clearly provides that a party who believes they have been the victim of discrimination, such as gender discrimination, must file a complaint with the Florida Commission on Human Relations, and thereafter have the Commission determine that there is reasonable cause to believe that a discriminatory practice has occurred in violation of the Florida Civil Rights Act of 1992, prior to filing a

¹ *Fresh Capital Financial Services, Inc. v. Bridgeport capital Services, Inc.*, 891 So. 2d 1142, 1143 (Fla. 4th DCA 2005).

² *See Temples v. Florida Indus. Const-Co., Inc.*, 310 So. 2d 326, 327 (Fla. 2d DCA 1975).

³ *See Binz v. Helvetia Florida Enterprises, Inc.*, 104 So. 2d 124, 126 (Fla. 3d DCA 1958); *see also Xavier v. Leviev Boymelgreen Marquis Developers, LLC*, 117 So. 3d 773, 755 (Fla. 3d DCA 2012).

⁴ *See Alvarez v. E&A Produce Corp.*, 708 So. 2d 997, 999 (Fla. 3d DCA 1998).

⁵ *See Fla. R. Civ. P. 1.130(b)*.

⁶ *See BAC Funding Consortium Inc. v. Jean-Jaques*, 28 So. 3d 936 (Fla. 2d DCA 2010).

⁷ *See Health Application Sys. Inc. v. Hartford Life & Accident Ins. Co.*, 381 So. 2d 294, 297 (Fla. 1st DCA 1980); *see also Khan v. Bank of Am., N.A.*, 58 So. 3d 927, 928 (Fla. 5th DCA 2011).

⁸ *See Ginsberg v. Lennar Fla. Holdings, Inc.*, 645 So. 2d 490, 501 (Fla. 3d DCA 1994).

complaint alleging same in a court of competent jurisdiction. The Defendant has failed to do so, and as a result, she has failed to satisfy a condition precedent to asserting her claim for gender discrimination in this action. Next, the Court agrees with the Plaintiff that the Defendant has failed to plead sufficient facts to state a cause of action for gender discrimination. While the Defendant does allege that “[a]t least one previous male member of the HOA and Board President was also a former employee of COLONIAL MANOR MHC HOLDINGS, LLC yet he suffered no such court actions and he, like the Plaintiff in this Cross Complaint was also the leader, albeit ineffective leader, of the rent negotiation committee during his tenure as HOA President,” the Defendant does not actually allege that the Plaintiff is bringing the present lawsuit against her simply because she is a female. Similarly, the Defendant has failed to state a claim for punitive damages in cases of intentional discrimination in employment pursuant to 42 U.S.C. § 1981a., because her Counterclaim does not allege that the Plaintiff engaged in a discriminatory practice or discriminatory practices with malice or with reckless indifference to the federally protected rights of the Defendant.⁹ For those reasons, the Court finds that Count I of the Defendant’s Counterclaim for Discriminatory Actions Based on Gender must be dismissed.

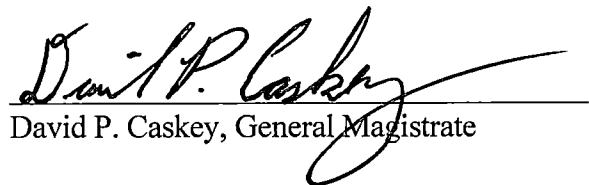
13. In addition, the Plaintiff claims that in Count II of the Counterclaim for Making False Statements, the Defendant is impermissibly attempting to assert a civil cause of action for damages against the Plaintiff for an alleged violation of Fla. Stat. § 837.06, a criminal statute. Although the Court acknowledges that Florida law contemplates civil remedies for certain criminal practices,¹⁰ and the Court further acknowledges that Fla. Stat. § 772.102(1)(a)27 clearly lists a violation of Chapter 837 of the Florida Statutes as the type of “criminal activity” for which civil remedies may be sought under Chapter 772, the Defendant’s factual allegations asserted in the Counterclaim fall far short of alleging factual allegations in support of a legally sufficient cause of action in compliance with Fla. Stat. § 772.103. For those reasons, the Court finds that Count II of the Defendant’s Counterclaim for Making False Statements must likewise be dismissed, with leave to amend, however, because it is not clear that the Defendant will be unable to amend her pleadings to allege a legally sufficient cause of action for civil remedies based on an alleged violation of Fla. Stat. § 837.06.
14. With respect to Count II of the Defendant’s Counterclaim alleging a violation of Fla. Stat. § 723.054, the Court agrees with the Plaintiff, and finds that the Defendant has failed to state a legally sufficient cause of action for a violation of that statute. Specifically, although the Counterclaim alleges that the Plaintiff, “by their very claim against her are attempting to prevent her, as a home owner to engage in peaceful communications, canvassing, and enjoyment of socializing with other park residents,” the Defendant does not allege that the Plaintiff has passed or adopted any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park that infringes upon her rights, which is what Fla. Stat. § 723.054(1)-(3) precludes. Accordingly, the Court finds that Count III of the Defendant’s Counterclaim alleging a violation of Fla. Stat. § 723.054 should likewise be dismissed, with leave to amend her pleadings to allege a legally sufficient cause of action, if possible.

⁹ See 42 U.S.C. § 1981a.(b)(1).

¹⁰ See Chapter 772, Florida Statutes.

15. For all of the foregoing reasons, the undersigned recommends that the Plaintiff's Amended Motion to Dismiss Defendant's Counterclaim be **GRANTED IN PART**, and that Counts I, II, and III of the Defendant's Counterclaim be dismissed, with leave to file an amended counterclaim within twenty (20) days.
16. The Court reserves jurisdiction for the implementation, enforcement, or modification of this order.
17. A record of the proceedings before the Magistrate was established by electronic means pursuant to Fla. R. Civ. P. 1.490.
18. Should you wish to seek review of the Magistrate's Report and Recommendation, you must file exceptions in accordance with Fla. R. Civ. P. 1.490(i). You will be required to provide the court with a record sufficient to support your exceptions or your exceptions will be denied. A record ordinarily includes a written transcript of all relevant proceedings. The person seeking review must have the transcript prepared if necessary for the court's review. The party filing exceptions is required to send copies of the exceptions directly to the Judge assigned to this case, as well as to the undersigned Magistrate.

FOUND AND RECOMMENDED in Bradenton, Manatee County, Florida, this 8th day of March 2022.

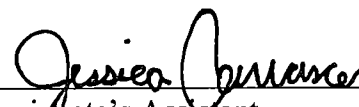

David P. Caskey, General Magistrate

CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was provided to the following parties via U.S. Mail and/or electronic mail on this 8 day of March 2022:

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By: 
Magistrate's Assistant